

FR. WIP

/2022

IN THE HIGH COURT OF KARNATAKA KALABURAGI BENCH PRESENTATION FORM

WIP

No. 200967 of 202Raichur District

Serial No. _____

Between _____

Advocate Sri

Avinash A. Upplaonkar

ADVOCATE

11-1802 - Vidyanagar Colony

KALABURAGI - 585 103

Ph.: 08472 - 250948 - Cell : 98454 10859

E-mail : adu.upkaonkar@gmail.com

Mr. Sanjosh Kumar
and others.

and

The state of Karnataka
and others

Sl. No.	Description of Paper Presented	Court Fee Affixed on the paper
01.	On the Memo of <u>writ</u> petition	800/-
02.	On the Memo of Appeal	
03.	On Vakalath	50/-
04.	On certified copies	
05.	On I.A. No. _____ for	
06.	On Process Fee	
07.	On Copy Application	
08.	On Memo of Appearance	
09.	_____	
10.	_____	
	TOTAL	50/-

Number of copies Furnished

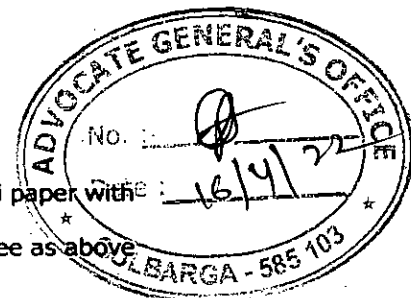
presented by

Advocate for petitioner S

Appellant / Respondent.

Advocate's clerk

Other side served

Date : 16/09/2022

Receiving clerk

Place : KALABURAGI

IN THE HIGH COURT OF KARNATAKA AT KALABURAGI

BENCH

(Original Jurisdiction)

Writ Petition No.

/2022

BETWEEN

VM Santoshkumar S/o VK Manoharan

And others

.....PETITIONERS

AND

The State of Karnataka

And others

....RESPONDENTS

INDEX

<u>Sl.</u> <u>No.</u>	<u>Description</u>	<u>Page</u> <u>No.</u>
<u>1.</u>	Synopsis	1 - 3
<u>2.</u>	Memorandum of Writ Petition	4 - 9
<u>3.</u>	Affidavit	10
<u>4.</u>	True Copy Government of Karnataka Notification dated 06.11.2013- <u>Annexure-A</u>	11-17
<u>5.</u>	True Copy of Schedule Promotion <u>-Annexure-B</u>	18 - 24
<u>6.</u>	True copy of representation dated 22.03.2022 & 25.03.2022 as per <u>Annexure-C & C-1.</u>	25 - 31
<u>7.</u>	Vakalatanama	32 - 33
<u>8.</u>		

Place : Kalaburagi

Date : 16/04/2022


(Avinash A. Uplaonkar)
Advocate for petitioners

IN THE HIGH COURT OF KARNATAKA AT KALABURAGI
BENCH

(Original Jurisdiction)

Writ Petition No.

/2022

BETWEEN

Jagadeesha T S/o Thimappa N

.....PETITIONERS

AND

The State of Karnataka
And others

.....RESPONDENTS

SYNOPSIS

SL.NO.	DATE	EVENT
1.	-Nil-	That, their was amendment to the Constitution and Article 371(J) and reservation was accorded to people of Hyderabad Karnataka Region. The copy of the Amendment is at Annexure-A .
2.	-Nil-	That, as per the C & R rules of the company the schedule depicts Deputy Manager in the category of Group 'A' (Jr. Scale). The same can be found at Annexure-B .
3.	22-03-2022	Thus, in view of the said development the petitioners herein have given the representation to respondents. As per Annexure-C & C-1 .

BRIEF FACTS OF THE CASE

That, the petitioners are working as Deputy Managers E-5 for the last 6-8 years and as per C and R Rules they are all eligible for the promotion of Managers and (E-6) and Senior Managers (E-7).

That, the petitioners are belonging to Non-Hyderabad Karnataka Region.



JK

That, there was amendment to the Constitution and Article 371(J) and reservation was accorded to people of Hyderabad Karnataka Region. The copy of the Amendment is at **Annexure-A**.

That, as per clause 8 which reads as follows " Reservation in the matter of direct recruitment or promotion-(1) All posts in any local cadre to be filled by direct recruitment or by promotion at any time under the State Government in any local authority or in any body or organization in that region comprising of and upto Group-A (Junior Scale), Group-B, Group-C and Group-D posts shall be reserved in favour of local persons in relation to the local area or the region in respect of such cadre to the extent specified in para 3.

That, as per the aforesaid clause the promotion that can be accorded as per 371(J) is upto the post of Deputy Manager (E-5) Group-A (Jr Scale).

That, as per the C & R rules of the company the schedule depicts Deputy Manager in the category of Group 'A' (Jr Scale). The same can be found at **Annexure-B**.

That, a clarification was sought by the respondent No.1 regarding bifurcation and according promotion as per amendment of Article 371(J) as the petitioners are employees of public limited company. In furtherance of the same, the internal correspondence the matter was kept in abeyance.

That, subsequently it was resolved that the promotion as per 371(J) cannot be accorded above Deputy Manager post was accepted in the board meeting and forwarded to the Government for approval which is pending.

In spite of this material fact being on record the respondent No.2 on 22.03.2022 have called for interview to the post of Manager (E-6) and Senior Manager (E-7) to the employees belonging to Hyderabad Karnataka Region.

D

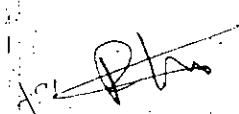
Thus, in view of the said development the petitioners herein have given the representation to respondents on 22.03.2022 and 25.03.2022. As per **Annexure-C & C-1**.

That, in-view of the impugned act has threatened to infringe the fundamental right of the citizen. Being aggrieved by the impugned act and having left with no other alternative & efficacious remedy, the petitioner is constrained to approach this Hon'ble Court for appropriate relief on the following among other grounds.

It is further submitted that there is no other writ or any lis between the said parties relating to the said cause of action before any other courts of law and as such no proceedings relating to the said cause of action is pending before any forum be it judicial or quasi-judicial.

Hence this petition.

Place: Kalaburagi
Date : 16/04/2022


Advocate for petitioners
(Avinash A. Uplaonkar)

4

IN THE HIGH COURT OF KARNATAKA AT KALABURAGI
BENCH

(Original Jurisdiction)

Writ Petition No. /2022

BETWEEN

1. VM Santoshkumar S/o VK Manoharan
Age: 51 years, Occ: Manager (Mining)
O/o Hutti Gold Mines, Raichur,
R/o: C-29, Hutti Gold Mines Co.Ltd
Hutti Post, Dist: Raichur-584115
2. Jagadeesha T S/o Thimmappa N
Age: 42 years, Occ: Deputy Manager
O/o Hutti Gold Mines, Raichur,
R/o: Hutti, Dist: Raichur-584115
3. Manjunatha K S/o Krishanappa P M
Age: 44 years, Occ: Deputy Manager
O/o Hutti Gold Mines, Raichur,
R/o: Hutti, Dist: Raichur-584115
4. Sanjeeva kumar Solankar S/o Narayan
Age: 43 years, Occ: Deputy Manager
O/o Hutti Gold Mines, Raichur,
R/o: Hutti, Dist: Raichur-584115
5. T.S Manjunath S/o T.R Srinivas Rao
Age: 40 years, Occ: Deputy Manager
O/o Hutti Gold Mines, Raichur,
R/o: Hutti, Dist: Raichur-584115
6. Sachin Kathare S/o Mohan Kathare
Age: 39 years, Occ: Deputy Manager
O/o Hutti Gold Mines, Raichur,
R/o: Hutti, Dist: Raichur-584115

7. Aravinda J S/o Jambanna S

Age: 38 years, Occ: Deputy Manager

O/o Hutti Gold Mines, Raichur,

R/o: Hutti, Dist: Raichur-584115

8. Shastry MGM S/o Gangadhara Murthy

Age: 38 years, Occ: Deputy Manager

O/o Hutti Gold Mines, Raichur,

R/o: Hutti, Dist: Raichur-584115

.....PETITIONERS

AND

1. The State of Karnataka

Represented by its, Secretary

Department of Commerce and Industries (MSME & MINES),

Vikasa Soudha

Bangaluru-560001

2. The Managing Director ,

The Hutti Gold Mines Company Limited,

3rd Floor, KHB Shopping Complex,

National Games village, Koramangala

Bangaluru-560047

3. The Executive Director,

Hutti Gold Mines,

The Hutti Gold Mines Company Limited

Hutti, Raichur-584115

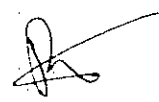
....RESPONDENTS

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 AND
227 OF CONSTITUTION OF INDIA

The petitioner herein respectfully submits as under:

1. That the address of the petitioner for the purpose of service of notice, summons etc, is that as shown in the cause title and it may also be notified through his counsel Sri.Avinash A.Uplaonkar, Advocate, H.No.11-1802, Vidya Nagar colony, Kalaburagi.

2. That the address of the respondents for similar purpose is as shown in the cause title.
3. That, the petitioners are working as Deputy Managers E-5 for the last 6-8 years and as per C and R Rules they are all eligible for the promotion of Managers and (E-6) and Senior Managers (E-7).
4. That, the petitioners are belonging to Non-Hyderabad Karnataka Region.
5. That, there was amendment to the Constitution and Article 371(J) and reservation was accorded to people of Hyderabad Karnataka Region. The copy of the Amendment is at **Annexure-A**.
6. That, as per clause 8 which reads as follows " Reservation in the matter of direct recruitment or promotion-(1) All posts in any local cadre to be filled by direct recruitment or by promotion at any time under the State Government in any local authority or in any body or organization in that region comprising of and upto Group-A (Junior Scale), Group-B, Group-C and Group-D posts shall be reserved in favour of local persons in relation to the local area or the region in respect of such cadre to the extent specified in para 3.
7. That, as per the aforesaid clause the promotion that can be accorded as per 371(J) is upto the post of Deputy Manager (E-5) Group-A (Jr Scale).
8. That, as per the C & R rules of the company the schedule depicts Deputy Manager in the category of Group 'A' (Jr Scale). The same can be found at **Annexure-B**.
9. That, a clarification was sought by the respondent No.1 regarding bifurcation and according promotion as per amendment of Article 371(J) as the petitioners are employees of public limited company. In furtherance of the same, the internal correspondence the matter was kept in abeyance.



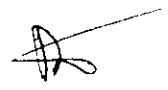
- 7
10. That, subsequently it was resolved that the promotion as per 371(J) cannot be accorded above Deputy Manager post was accepted in the board meeting and forwarded to the Government for approval which is pending.
 11. Inspite of this material fact being on record the respondent No.2 on 22.03.2022 have called for interview to the post of Manager (E-6) and Senior Manager (E-7) to the employees belonging to Hyderabad Karantaka Region.
 12. Thus, in view of the said development the petitioners herein have given the representation to respondents on 22.03.2022 and 25.03.2022. As per **Annexure-C & C-1**.
 13. That, in-view of the impugned act has threatened to infringe the fundamental right of the citizen. Being aggrieved by the impugned act and having left with no other alternative & efficacious remedy, the petitioner is constrained to approach this Hon'ble Court for appropriate relief on the following among other grounds.
 14. It is further submitted that there is no other writ or any lis between the said parties relating to the said cause of action before any other courts of law and as such no proceedings relating to the said cause of action is pending before any forum be it judicial or quasi-judicial.

CASUE OF ACTION

15. That, the petitioner have not filed any other writ petition nor instituted any suit or other proceedings either before this Hon'ble court or before any other court or the Authority on the same cause of action and in respect of neither the same subject matter nor the same are pending. This is not public interest litigation.
 16. That, the petitioner has no other alternative and efficacious remedy than to approach this Hon'ble court on the following among other grounds to be urged at the time of hearing the writ petition on its merits.
- D

GROUND

17. That, the impugned act of the authorities in not acting in accordance with law and not obeying the dictum of this court in complying the directions while considering the application for consideration in accordance with law leading to in-convince is infringement of fundamental rights of the petitioner.
18. The act of the respondents in willfully postponing the request of petitioners having brought to their knowledge amounts to gross high handedness on the ends of the post & blatant violation of settled norms.
19. That, the petitioners are working in their respective posts ranging from 4-11 years and as per C & R rules they are eligible for promotion as Manager and senior Manager.
20. That, it is imminently clear as per clause (8) (3) of 371 (J) Notification of Government of Karnataka in DPAR 06 PLX 2012 Bangalore dated 06.11.2013 that no promotion under article 371(J) above the post of Group-A (Jr-Scale) can be given.
21. That, as the letter of the office of respondent No.1 DI96-CMC 2013 dated 20.12.2013 and VraNi/HaJeKi/HruKaPaAa/2014 dated 18.01.2014 has already once again reiterated the above fact to the Government of Karnataka.
22. Thus, inspite of their being resolution by the board and the circular for making any reservation to the posts above Deputy Manager, the respondent No.2 has called for interview on 22.03.2022 for the purpose of accommodating and promoting candidates of Hyderabad Karnataka area U/A. 371 (J) is paramount illegal.
23. That, it is pertinent to mention that as per schedule the respondent No.3 ought to have published the seniority list in the month of January 2022 and acted there upon, which is not done so.



- 96
24. That, the respondent failed to see that the impugned act effects the rights of the petitioners guaranteed under the Constitution of India resulting in infringing of their rights without any authority of law which is a clear abuse of process of law.

PRAYER

WHEREFORE it is respectfully prayed that this Hon'ble Court may be please to

- a. Issue a writ in the nature of mandamus directing respondents not to precipitate the promotion of employees of Hyderabad Karnataka Region U/A. 371(J) till the representations dated 22.03.2022 and 25.03.2022 as per **Annexure-C & C-1** are considered, in the interest of justice and equity.
- b. Issue any other writ or order or direction as deems fit to grant by this Hon'ble Court in the interest of justice and equity.

Place : Kalaburagi
Date : 16/04/2022


Advocate for petitioners
(Avinash A. Uplaonkar)

ADDRESS FOR SERVICE

Avinash A. Uplaonkar,
Advocate
H.No.11-1802,
Vidyanagar colony, Kalaburagi
Email:adu.uplaonkar@gmail.com
M-9845410859

Reg. No. 302
Receipt No. 302 Date 15/04/2022
Book No. 04

10

IN THE HIGH COURT OF KARNATAKA AT KALABURAGI
BENCH
(Original Jurisdiction)

Writ Petition No.

/2022

BETWEEN

VM Santoshkumar S/o VK Manoharan

And others

.....PETITIONERS

AND

The State of Karnataka

And others

.....RESPONDENTS

AFFIDAVIT

I, Jagadeesha T S/o Thimmappa N, Age: 42 years, Occ: Deputy Manager O/o Hutti Gold Mines Company Ltd, Raichur, R/o: Hutti, Dist: Raichur-584115, today at Kalaburagi do hereby state on oath behalf of myself and other petitioners as follows:

1. That I am the petitioner No.2 in the above case and hence I am well versed with the facts of the case.
2. That the statements made in paragraphs No.1 to 24 of the writ petition accompanying this affidavit are true and correct to the best of my knowledge, belief and I believe the same to be true and correct.
3. That the **ANNEXURE - 'A' to 'C-1'** annexed to this writ petition are the attested true copies of their respective original.

Place: Kalaburagi

Date: 15/04/2022

Identified by me

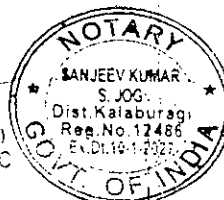
Advocate

No of corn (

NH + 3)

SWORN BEFORE ME

SJK
SANJEEV KUMAR, S. JOG
B.A. LL.B. (Spl.)
ADVOCATE & NOTARY PUBLIC
DIST. KALABURAGI.



Jagadeesha T

DEPONENT

15 APR 2022



ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ

ಅಧಿಕೃತವಾಗಿ ಪ್ರಕಟಿಸಲಾದುದು
ವಿಶೇಷ ರಾಜ್ಯ ಪತ್ರಿಕೆ

IV-A	ಬೆಂಗಳೂರು, ಮಂಗಳವಾರ, ನವೆಂಬರ್ ೬, ೨೦೧೩ (ಕಾರ್ತಿಕ ೧೫, ಶಕ ವರ್ಷ ೧೯೩೫)	ನಂ.೧೨೫೪
IV-A	Bangalore, Wednesday, November 6, 2013 (Karthika 15, Shaka Varsha 1935)	No. 1254

PERSONNEL AND ADMINISTRATIVE REFORMS SECRETARIAT

NOTIFICATION

No. DPAR 06 PLX 2012, Bangalore, dated: 06.11.2013

The following Order made by the Governor is hereby published for general information:-

THE KARNATAKA PUBLIC EMPLOYMENT (RESERVATION IN APPOINTMENT FOR HYDERABAD-KARNATAKA REGION) ORDER, 2013.

In exercise of the powers conferred by clause 2 of the Karnataka (Special Responsibility of Governor for Hyderabad-Karnataka Region) Order, 2013, the Governor of Karnataka hereby makes, with respect to the State of Karnataka, the following Order, namely:-

1. **Title and commencement.**- (1) This Order may be called the Karnataka Public Employment (Reservation in appointment for Hyderabad-Karnataka Region) Order, 2013.
- (2) It shall come into force from the date of their publication in the official Gazette.
2. **Interpretations.**- (1) In this Order, unless the context otherwise requires,-
 - (a) "body or organization" means any statutory or non-statutory body or organization established and maintained by the State Government.
 - (b) "Direct Recruitment" includes all recruitments made on a permanent basis and excludes appointments made under:-
 - (i) the Karnataka Civil Services (Appointment on compassionate grounds) Rules, 1996; or
 - (ii) the Karnataka Civil Services (Appointment of Family Members of Persons belonging to Scheduled Castes or Scheduled Tribes, on compassionate grounds) (Special) Rules, 1999; or
 - (iii) the Karnataka Civil Services (Appointment of Family Members of Persons Deceased in Communal Clashes, on compassionate grounds) (Special) Rules, 1993 or
 - (iv) and recruitment made in pursuance of any scheme approved by the State Government providing for the regularization of the services of persons holding posts on a temporary basis before the commencement of this Order

12

- (c) "Local Area" in relation to any local cadre means the area of the Hyderabad-Karnataka region;
 - (d) "Local Authority" means the Zilla Panchayats, Taluk Panchayats, Gramapanchayats constituted under the Karnataka Panchayat Raj Act, 1993 and Municipal Corporations, Municipal Councils and Town Panchayats constituted under the Karnataka Municipal Corporations Act, 1976 or the Karnataka Municipalities Acts, 1964, and includes any local authority which is subject to the control of State Government or any other new office which may be created at a later date to serve purposes similar to all above mentioned institutions;
 - (e) "Local Cadre" means any local cadre under the State Government or in any Local Authority or body or organization organized in pursuance of paragraph 3;
 - (f) "Local person" in relation to any local area means a person who qualifies under paragraph 6 as a local person in relation to such local area;
 - (g) "non-local person" means persons other than the local persons;
 - (h) "Region" or "Hyderabad-Karnataka Region" shall comprise of revenue districts of Bidar, Gulbarga, Raichur, Koppal, Yadgir and Bellary Districts;
 - (i) "State Level Office or Institution" means an office or institution serving or the jurisdiction of which extends to the State as a whole or serving the state capital region or serving the whole state or any other new office, which may be created at a later date to serve purposes similar to all above mentioned institutions;
 - (j) "State Government" means the Government of Karnataka.
 - (k) "Domicile" in this notification means "Local Persons" as defined in Para-6.
- (2) The General Clauses Act, 1897 (Central Act 10 of 1897), applied for the interpretation of this as it applies for the interpretation of a Central Acts.

CHAPTER-I

3. Organization of Local Cadres.-(1) The Governor shall within a period of three months from the commencement of this Order, by notification identify posts in the civil services or all posts under the State Government in the Hyderabad-Karnataka Region or posts in Local Authority or body or organization under the control of the State Government in that region into the local cadre to the extent and in the manner, hereinafter provided.

(2) 75% of the posts in the region belonging to Group-A (Junior Scale) and Group-B posts in each department of the State Civil Service or in local Authority or body or organization shall be organized into as local cadres.

(3) 80% of the posts in the Region belonging to the category of Group-C and 85% percent of the posts in the Group-D in each department of State Civil Service or in local Authority or body or organization shall be organized as local cadres.

Provided that, notwithstanding the expiration of the said period, the Governor may, by order, require the State Government, whenever he considers it expedient to do so, organize any classes of posts in the civil services or under the State or in any Local Authority or body or organization into local cadres in the said region.

4. Allotment of Persons.- (1) Persons holding posts required to be organized into local cadres shall be allotted to such cadres by the State Government or any officer or authority authorized by it in this behalf in accordance with the principles and procedure hereinafter specified and in accordance with the rules notified by the Government.

(2) The Local persons may be given an opportunity to opt for being allotted to the local cadre and may be allotted to the local cadres in the Region.

(3) Any person aggrieved by an order allotting him to the local cadre may submit a representation to the State Government within a period of sixty days from the date of communication of the order.

(4) The State Government or competent authority shall, on receipt of such representations shall dispose off the same after due inquiry.

Provided that wherever such an order is likely to result in the change of allotment of any other person, no such order shall be made without giving an opportunity to that other person to make a representation.

5. Local cadres and transfer of persons.- (1) The region for which a local cadre has been organized in respect of any category of posts, shall be a separate unit for purposes of recruitment, appointment, seniority, promotion and transfer and such other matters as may be specified by the State Government in respect of that category of posts.

(2) Nothing in this order shall prevent the State Government from making provision for:-

- (a) the transfer (or deputation) of a person from any local cadre to any other local cadre or to any office or establishment to which this order does not apply, or Vice versa.
- (b) the transfer (or deputation) of a person from one local cadre to another cadre where no qualified or suitable person is available in the latter cadre or where such transfer is otherwise considered necessary in the public interest.
- (c) the overall joint seniority list in the State (along with the separate local cadre seniority list) for such cadres which ordinarily have state wide cadre.
- (d) The Governor may ensure that the persons borne on the local cadre at Gazetted levels are not discriminated against in being posted anywhere in Karnataka.

6. Domicile (Local person).- (1) A candidate for direct recruitment or promotion to any post shall be regarded as a local person in relation to a local area:-

- (a) If he is born in the local area or either of his parents was born in that region before 1.1.2013, or, either of his parents ordinarily lived in the local area for more than ten years prior to 1.1.2013 and had their name either in the electoral list or ration card; or owned any immovable property on or before 1.1.2013 in the local area; or
- (b) In cases where a minimum educational qualification has been prescribed for recruitment to the post,-
 - (i) If he has studied in an educational institution or educational institutions in such local area for a period of not less than Ten consecutive academic years ending with the academic year in which he appeared or, as the case may be, first appeared for the relevant qualifying examination; or
 - (ii) Where during the whole or any part of the Ten consecutive academic years ending with the academic year in which he appeared or as the case may be, first

14

appeared for the relevant qualifying examination he has not studied in any educational institution. If he has resided in that local area for a period of not less than Ten year immediately preceding the date of commencement of the qualifying examination in which he appeared or as the case may be, first appeared; or

- (iii) Where either of his parents has studied in an Educational Institution in such Local area for a period of Ten consecutive academic years.
- (c) In cases where no minimum educational qualification has been prescribed for recruitment to the post, if he or either of his parents has resided in that local area for a period of not less than Ten years immediately preceding the date on which the post is notified for recruitment; and
- (d) In case of a woman, if she got married to a Local person specified in the clauses (a) to (c) above.
- (e) For existing employee for whom these rules apply, the entry in their service register before 1.1.2013 as to their home town or place falling within the local area shall be conclusive proof of their domicile.

Explanations.- For the purpose for this paragraph,-

- (i) "Education Institution" means a University or any educational institution recognized by the State Government, a University or other competent authority.
- (ii) "Relevant qualifying examination in relation to a post" mean,-
- (a) the examination, a pass in which is the minimum educational qualification prescribed for the post;
- (b) the secondary School leaving certificate examination or an examination declared by the State Government to be equivalent to the Secondary School leaving Certificate examination, whichever is lower; and
- (iii) in reckoning the consecutive academic years during which a candidate has studied, any period of interruption of his study by reason of his failure to pass any examination shall be disregarded;
- (iv) the question whether any candidate or either of his parents resided in any local area shall be not only determined with reference to the places where the candidate or either of his parents actually resided.

7. Competent Authority to issue Certificate.- (1) The Government may notify Competent Authority to issue eligibility certificate for a local person. The Competent Authority after due inquiry and public notice in such manner as may be prescribed issue eligibility certificate.

(2) Any person (applicant or the member of the public) aggrieved by the order of the Competent Authority may make appeal to the Deputy Commissioner or any other Appellate Authority notified by the Government, within thirty days of issue of such eligibility certificate.

(3) The Competent authority and the Appellate Authority shall dispose off the application or appeal within thirty days from the date of its receipt.

(4) 'Birth Certificate' required to prove Domicile shall be issued in the manner prescribed by the Government.

(5) Government may lay down procedure for issue of Validity Certificate for the proof domicile.

8.
Local cadre
Government
upto Group
Local person
specified in

(2)

adre.

(3)

Local person

(4)

(a)

(b)

(5)

vacancies w
ated as u

9. Po

Government
ect to this
ganization

(2) Th

satisfying
quire, by c
ormation o
mply with s

10. O

withstandi
ore or after
its under th

(2) Con

motions ma

(3) No

shall be fi

(4) Any

ast to the e

(5) Any p

st to the ext

11. Rem

shall affect

only by or

13
8. Reservation in the matter of direct recruitment or promotion.- (1) All posts in any local cadre to be filled by direct recruitment or by promotion at any time under the State Government in any local authority or in any body or organization in that region comprising of and upto Group-A (Junior Scale), Group-B, Group-C and Group-D posts shall be reserved in favour of local persons in relation to the local area or the region in respect of such cadre to the extent specified in para 3.

(2) The cadre and recruitment for group C and D posts shall be organized as district wise cadre.

(3) While determining under this paragraph the number of posts to be reserved in favour of local persons, any fraction of a post shall be counted as one.

(4) Notwithstanding anything contained in the foregoing provisions of this paragraph,-

(a) there shall be at least one post left unreserved out of the posts filled by direct recruitment at any time to any local cadre;

(b) there shall be, as far as possible, at least one post reserved for the local candidates in respect of each local area.

(5) If suitable local candidates are not available for any post at any point of time such vacancies will be taken as back log and carried forward till next appointment, after which it may be filled as unreserved and filled accordingly.

9. Power to authorize issue of direction.- (1) The Governor, may by order, require the State Government to issue such direction as may be necessary or expedient for the purpose of giving effect to this Order to any local authority or body or organization and such local authority body or organization shall comply with such directions.

(2) The Government may, for the purpose of issuing any direction under sub-paragraph (1) or satisfying itself that any directions issued under sub-paragraph have been complied with, by order in writing, any local authority or body or organization to furnish them such information or report of particulars, as may be specified, in the order and such local authority shall comply with such order.

10. Order to have over-riding effect.- (1) Provisions of this order shall have effect notwithstanding anything contained in any Act or rule, regulation or byelaw made there under before or after the commencement of this Order in respect of direct recruitment or promotion to posts under the State Government or any local authority or body or organization.

(2) Concurrence of Finance Department shall be presumed for the direct recruitments and promotions made under these orders.

(3) No economy measure shall apply for the reserved posts and as far as possible reserved posts shall be filled by regular appointments and not by outsourcing.

(4) Any temporary or contract appointments made in the region shall be of Local Person to the extent of reservations prescribed in para 3 above.

(5) Any procurement of Manpower in the region through outsourcing shall be of Local Person to the extent of reservation prescribed in Para-3 above.

11. Removal of doubts.- For the removal of doubts, it is hereby declared that nothing in this Order shall affect the operation of any provisions made by the State Government or other competent authority by or under any law before or after the commencement of this Order in respect of

reservation in the matter of appointments to posts in favour of persons belonging to the backward classes of citizens, the Scheduled Castes and the Scheduled Tribes or in favour of physically handicapped, women, ex-servicemen, rural candidates and project displaced persons in so far as such provisions are not inconsistent with this order.

12. Certain appointments and promotions to be provisional.- Any appointment or promotion made after the commencement of the Constitutional Amendment 371J on 01.01.2013, and before any local cadre has been organized and operated under the provisions of this order or any order made in pursuance to paragraph 3, to any post which is required to be included in such cadre shall be provisional and shall, within a period of six months after such organization, be reviewed and readjusted in accordance with the provisions of this Order.

Explanation.- For the purpose of this paragraph any local cadre shall be deemed to be organized, with the allotment of persons to it under paragraph 4.

12 A: Local Bench of Tribunal for dispute resolution: The Governor may request appropriate authority to establish one or more Local Benches of the Administrative Tribunal to settle disputes arising out of this order.

CHAPTER-II

13. State Level Offices or Institutions or Apex Institutions.- 8% of the posts in the following State Level Offices or State Level Institutions or Apex Institutions reflecting population percentage of the Region in total population of Karnataka in all departments, body or organization and at upto levels of Group A (Junior Scale) post shall be reserved for Local persons of the region. namely:-

- (a) Secretariat of the State Government
- (b) Secretariat of the Legislative Assembly
- (c) Secretariat of the Legislative Council
- (d) Karnataka High Court: Officers and servants appointed as per article 229 of the constitution.
- (e) The Karnataka Public Service Commission
- (f) An office of the Head of a Department
- (g) A Special Office or Establishment
- (h) Any State-level office or Institution
- (i) All corporations / bodies outside the Region
- (j) The Bangalore Development Authority / Bruhat Bangalore Mahanagara Palike/Similar Institutions serving the capital city of the state, Bangalore.
- (k) Any other new office, which may be created at a later date to serve purposes similar to all above-mentioned institutions or such other office or body notified by the State Government.
- (l) All the Karnataka State Government funded Universities in the State.

13 A: Shifting of State Level Offices: The Governor may request the State Government to shift certain State Level Offices of Government and Government controlled bodies and institutions to the region so that the number of posts in the region is proportionate to the population of the region.

15

17

13 B: Age relaxation and Grace marks: (a) The Governor may by order provide for age or any other relaxation in the condition of employment for the local person in local employment.

(b) The Governor may by order provide for Grace Marks or any other concessions to the local person in employment in the whole of Karnataka State.

13 C: Protection and promotion of right of local candidates: Local candidates who had been appointed by the Government on local basis and who have worked for more than 10 years prior to 01-01-2013; or local candidates who have worked on daily or contract basis in Government for more than 10 years prior to 01-01-2013 and fulfill conditions as prescribed may be given certain concessions in appointment and other benefits as prescribed by the Government.

H.R. BHARADWAJ
GOVERNOR OF KARNATAKA

By Order and in the name of the Governor of Karnataka

K.L. LOKANATHA
Joint Secretary
(Hyderabad-Karnataka Special Cell)
DPAR

This Document referred to
Annexure.....in this
Affidavit of

NOTARY PUBLIC

S/c A

Notary Public, Hyderabad, Andhra Pradesh (27) (1000 3010)



ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿ ಕಂಪನಿ ನಿಯಮಿತ
THE HUTTI GOLD MINES COMPANY LIMITED
(A Govt. of Karnataka Undertaking)

ಸಂಖ್ಯೆ: ವ್ಯನಿ/ಹಚಿಗ/ಹೈ.ಕ.ಪ್ರ.ಅ/2014

18-01-2014.

18/01/14
ಶರಣರ ಕಾರ್ಯದರ್ಶಿಗಳು
(ಗಣಿ, ಸಪ್ತಕೈ & ಜವಳಿ),
ವಾಣಿಜ್ಯ ಮತ್ತು ಕೈಗಾರಿಕೆ ಇಲಾಖೆ,
ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,
1ನೇ ಮಹಡಿ, ವಿಕಾಸ ಸೌಧ,
ಬೆಂಗಳೂರು - 560 001.

ಮಾನ್ಯರೇ,

ವಿಷಯ: ಹೈದ್ರಾಬಾದ್-ಕರ್ನಾಟಕ ಪ್ರದೇಶದ ಅಭಿವೃದ್ಧಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತ
ಭಾರತ ಸಂವಿಧಾನದ ಅನುಚ್ಛೇದ 371(ಜೆ)ಯ ತಿದ್ದುಪಡಿಯನ್ನು
ಅನುಷ್ಠಾನಗೊಳಿಸುವ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಸ್ಥಳೀಯ ವ್ಯಂದವನ್ನು ಸೃಷ್ಟಿಸುವ
ಕುರಿತು.

ಉಲ್ಲೇಖ: ತಮ್ಮ ಪತ್ರ ಸಂಖ್ಯೆ: ಸಿಎ 96 ಸಿಎಮ್‌ಸಿ 2013, ದಿನಾಂಕ 20-12-2013

ಮೇಲ್ಕಂಡ ವಿಷಯ ಹಾಗೂ ಉಲ್ಲೇಖಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ತಾವು ಹೈದ್ರಾಬಾದ್-
ಕರ್ನಾಟಕ ಅಭಿವೃದ್ಧಿ ಪ್ರದೇಶದಲ್ಲಿರುವ ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿ ಕಂಪನಿ ನಿಯಮಿತಕ್ಕೆ ಸ್ವಯಂಸಹ
ಹೆಚ್ಚುವರಿ ಮಾಹಿತಿಯನ್ನು ನಿಗದಿತ ಸಮಾನೆಯಲ್ಲಿ ತಯಾರಿಸಿ, ಈ ಪತ್ರದೊಂದಿಗೆ ಲಗತ್ತಿಸಿ ತಮ್ಮ
ಮುಂದಿನ ಕ್ರಮಕ್ಕಾಗಿ ಸಲ್ಲಿಸಲಾಗಿದೆ.

ಕಂಪನಿಯು ಗ್ರಾಹ್ 'ಎ' ಹಿರಿಯ ಮತ್ತು ಕಿರಿಯ ಶ್ರೇಣಿ, 'ಬಿ', 'ಸಿ' ಮತ್ತು 'ಡಿ'
ಪರ್ಗಗಳ ಹುದ್ದೆಗಳಿಗೆ ತನ್ನದೇ ಆದ ಮಂಜೂರಾದ ಹುದ್ದೆಗಳನ್ನು ಅನುಬಂಧ-1ರಲ್ಲಿ ನೀಡಿದೆ

ಗ್ರಾಹ್ 'ಎ' ಮತ್ತು 'ಬಿ' ಪರ್ಗಗಳ ಮಂಜೂರಾದ ಹುದ್ದೆಗಳನ್ನು ದಿನಾಂಕ
29-01-1996 ರಂದು ಮತ್ತು 'ಸಿ' ಹಾಗೂ 'ಡಿ' ಪರ್ಗಗಳ ಒಟ್ಟು ಮಂಜೂರಾದ ಹುದ್ದೆಗಳಿಗೆ
ದಿನಾಂಕ 23-09-2010 ರಂದು ನಡೆದ ಕಂಪನಿಯ ಆಡಳಿತ ಮಂಡಳಿಯ ನಿರ್ದೇಶಕರ ಸಭೆಯು
ಅನುಮೋದನೆ ನೀಡಿರುತ್ತದೆ. ಕಂಪನಿಯ ಸಿ & ಆರ್ ಕಾಯ್ದೆ ಪ್ರಕಾರ ಕಂಪನಿಯ ನಿರ್ದೇಶಕರ
ಮಂಡಳಿಯಿಂದ ಒಟ್ಟು ಹುದ್ದೆಗಳು ಮಂಜೂರಾಗಿರುತ್ತದೆ.

ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿಯು ತನ್ನ ಸಂಸ್ಕರಣ ಸ್ಥಾವರ (Plant) ಸಹಿತ ತನ್ನ ಘಟಕವನ್ನು
ಹಟ್ಟಿ ಗ್ರಾಮ, ಲಿಂಗಸುಗೂರು ತಾಲೂಕು, ರಾಯಚೂರು ಜಿಲ್ಲೆಯಲ್ಲಿ ಹೊಂದಿದ್ದು, ಗಾತ್ರ ವಿರೂಪ
ಯೋಜನೆಗಳಲ್ಲಿ ಒಂದನ್ನು ಉಳಿ ಗ್ರಾಮ, ದೇವದುರ್ಗ ತಾಲೂಕು ಹಾಗೂ ಇನ್ನೊಂದನ್ನು ಹಿರಾ-
ಬುದ್ದಿನ್ನಿ ಗ್ರಾಮ, ಮಾನ್ಯ ತಾಲೂಕು, ರಾಯಚೂರು ಜಿಲ್ಲೆಯಲ್ಲಿ ಹೊಂದಿರುತ್ತದೆ. ಇದಲ್ಲದೆ,
ಕಂಪನಿಯು ತನ್ನ ಒಂದು ಘಟಕವನ್ನು ಇಂಗ್ಲೆಂಡ್ ಗ್ರಾಮ, ಚಿತ್ರದುರ್ಗ ಜಿಲ್ಲೆಯಲ್ಲಿ ಹೊಂದಿದ್ದು,
ಪ್ರಸ್ತುತ ಅಲ್ಲಿ ಯಾವುದೇ ಗಣಿ ಚಟುವಟಿಕೆ ನಡೆಯುತ್ತಿಲ್ಲ. ಆದರೆ, ಗಣಿ ಯಂತ್ರಗಳ ಮೂಲಕ
ವಿದ್ಯುತ್ ಉತ್ಪಾದನೆ ಮಾಡಲಾಗುತ್ತಿದೆ.

ನಿರ್ದೇಶಕರು
Registered Office: 1st Floor, KHB Shopping Complex, Narasipeta Village, Hosangudi, Bangalore-560011
Phone: 080-2571050, 25705723, 25725724 Email: hgm@vsnl.com, www.huttigold.com
PO HUTTI-584115, Kachin District, Karnataka, India
P.O. 084115, 584115, Kachin District, Karnataka, India

19

ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿ ಕಂ.ನಿ.

- 2 -

ಚಿತ್ರದುರ್ಗ ಚಿನ್ನದ ಘಟಕದ 22 ಕಾರ್ಮಿಕರನ್ನು ಹಟ್ಟಿ ಚಿನ್ನದ ಘಟಕದಲ್ಲಿ ವಿಲೀನ ಮಾಡಿಕೊಂಡಿದ್ದು, ಅವರಲ್ಲಿ 7 ಜನ ಕಾರ್ಮಿಕರನ್ನು ಮಾತ್ರ ಚಿತ್ರದುರ್ಗ ಚಿನ್ನದ ಘಟಕದಲ್ಲಿ ಕಲಸ ನಿರ್ವಹಿಸಲು ನಿಯೋಜಿಸಲಾಗಿದೆ. ಅವರಲ್ಲರೂ ಹಟ್ಟಿ ಚಿನ್ನದ ಘಟಕದ ಮಂಜೂರಾದ ಹುದ್ದೆಗಳ ಅಡಿಯಲ್ಲಿ ಇರುತ್ತಾರೆ.

ಇದರೊಂದಿಗೆ ಕಂಪನಿಯು ತನ್ನ ಅಧಿಕೃತ ಕಛೇರಿಯನ್ನು ಬೆಂಗಳೂರಿನಲ್ಲಿ ಹೊಂದಿದ್ದು, ಅಲ್ಲಿ ತನ್ನ ಇಬ್ಬರು ಅಧಿಕಾರಿಗಳು ಮತ್ತು 19 ಸಿಬ್ಬಂದಿಗಳನ್ನು ನಿಯೋಜಿಸಿರುತ್ತದೆ. ಇವರು ಸಹ ಹಟ್ಟಿ ಚಿನ್ನದ ಘಟಕದ ಮಂಜೂರಾದ ಹುದ್ದೆಗಳ ಅಡಿಯಲ್ಲಿ ಇರುತ್ತಾರೆ.

ವಂದನಗಳೊಂದಿಗೆ,

ತಮ್ಮ ವಿಶ್ವಾಸಿ,
ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿ ಕಂಪನಿ ಪರವಾಗಿ,

ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು.

ಲಗತ್ತು: ಮೇಲಿನಂತೆ

Details of the Incumbency against the sanctioned posts in respect of the posts located in the State Office / Institutions as on 01/01/2013 (As defined in Section 2(i) of the Karnataka Public Employment (Reservation in appointments for Hyderabad Karnataka Region) Order, 2013.

POSTS	NOMENCLATURE OF THE POSTS	GRD	TIME SCALE OF PAY	NO OF LOCAL PERSONS	NO OF NON LOCAL PERSONS
GROUP "A" SR SCALE	EXECUTIVE DIRECTOR	E-10	35300-46400	-	-
	GENERAL MANAGER	E-9	33650-44450	1	-
	DEPUTY GENERAL MANAGER	E-8	30450-42500	2	4
	SENIOR MANAGER	E-7	25325-38800	5	4
	MANAGER	E-6	21425-35300	5	7
GROUP "A" JR SCALE	DEPUTY MANAGER	E-5	19075-33650	20	15
	SENIOR ENGINEER / OFFICER	E-4	15925-28900	14	26
GROUP "B"	ENGINEER / OFFICER	E-3	12800-26000	40	15
	ASSISTANT ENGINEER / OFFICER	E-2	12425-23300	6	2
	JUNIOR ENGINEER/OFFICER	E-1	11300-20800	24	5
" A + B " GROUP TOTAL				117	78
GROUP "C"	DEPTL ASST. (UG) G1	G- 1	17370- 30600	13	5
	DEPTL ASST. (S/F) G1	G- 1		19	6
	MATRON G1	G- 1		1	
	SUPERVISOR (UG) G2	G- 2	16860- 29700	15	2
	SUPERVISOR (S/F) G2	G- 2		81	10
	ASST.MATRON G2	G- 2		2	
	GENERAL FOREMAN G3 (UG)	G- 3	16360 - 28830	8	4
	FOREMAN GRI G3	G- 3		16	6
	FOREMAN GRI (BANKSMAN/D.S) G3	G- 3		2	
	LAB ASST. GRI G3	G- 3		2	1
	GENERAL FOREMAN G3 (SF)	G- 3		19	4
	HOIST DRIVER 550 HP & ABOVE G3	G- 3		6	
	SR.SECURITY INSPECTOR G3	G- 3		1	2
	CLERK GRI G3	G- 3		40	7
	DRAUGHTSMAN GRI G3	G- 3		3	
	STENO TYPIST GR1 G3	G- 3		1	
	ASST.COOKING/CATERING SUPERVISOR G3	G- 3		2	
	HEAD NURSE G3	G- 3		14	1
	LAB TECHNICIAN GRI G3	G- 3			1
	OPERATION THEATRE NURSE G3	G- 3		2	
	PHARMACIST GRI G3	G- 3		3	
	PHYSIOTHERAPIST GRI G3	G- 3		1	
	X-RAY TECHNICIAN G3	G- 3			

GROUP "C"

FOREMAN (BANKSMAN/ D.S) GRII G4	G- 4	15410-27990	8	
FOREMAN GRII (UG) G4	G- 4		12	
FOREMANG4 (SF)	G- 4		38	11
HOIST DRIVER 550HP & ABOVE G4	G- 4		4	4
SECURITY INSPECTOR GRI G4	G- 4		3	1
HEAD COOK G4	G- 4		1	
SHIFT INCHARGE GRI G4	G- 4		33	1
STAFF NURSE G4	G- 4			
ASST. FOREMAN (G-5) (MINING /MATE)	G- 5		84	12
ASST. FOREMAN (G-5) (SF)	G- 5		111	13
LAB ASST.GRII G5	G- 5		6	1
HOIST DRIVER 550 HP & ABOVE G5	G- 5	14520 - 27170	1	3
SECURITY INSPECTOR GRII G5	G- 5		10	1
CLERK GRII G5	G- 5		12	2
DRAUGHTSMAN GRII G5	G- 5		7	
SENIOR COOK G5	G- 5		6	
SHIFT INCHARGE GRII G5	G- 5		4	
LAB. TECHNICIAN GRII G5	G- 5		2	2
NURSE G5	G- 5		3	
OPERATION THEATRE ASST.G5	G- 5		3	
PARMACIST G5	G- 5		2	
BELLMAN GRI G6 S/S	G- 6		5	
BLASTER GRI S/S G6	G- 6		19	
LDBH DRILLER OPERATOR GRI G6 S/S	G- 6		7	
LHD OPERATOR GRI G6 S/S	G- 6		3	
LOADER OPERATOR GRI G6 S/S	G- 6		5	
LOCO OPERATOR GRI G6 S/S	G- 6		3	
MAISTRY GRI G6 S/S	G- 6		95	6
PUMP DRIVER GRI G6 S/S	G- 6		17	
ROCK BREAKER OPERATOR GRI G6 S/S	G- 6		3	
SMALL HOIST DRIVER GRI G6 S/S	G- 6		5	
SR.MAINT. OPERATOR G6	G- 6		48	
ELECTRICIAN GRI/ CABLE JNT/TELE MECH.G6	G- 6	13670 - 25600	28	3
HEAD BLACKSMITH G6	G- 6		3	
HOIST DRIVER 550 HP & ABOVE G6	G- 6		2	
SR.PME FITTER GRI G6	G- 6		10	1
SR.RIGGER G6	G- 6		3	
SR.AIR HOIST MAINT.G6	G- 6		1	
SR.CARPENTAR/MACHINEMAN/PAINTER G6	G- 6		5	1
SR.CH/PH MECH/DRIVER G6	G- 6		11	
SR.CRUSHER MAINT.G6	G- 6		5	
SR.FABRICATOR/FITER G6	G- 6		12	2

22

GROUP "C"

SR.LAMP MECHANIC G6	G- 6	5	
SR.LDBH MAINT.G6	G- 6		
SR.LOADER MAINT. G6	G- 6	4	
SR. LOCOMOTIVE MAINT G6	G- 6	5	
SR. MASON G6	G- 6	3	
SR.MOULDER G6	G- 6	1	1
SR.MV-MECH CUM FITTER G6	G- 6	4	1
SR.PIPE FITTER G6	G- 6	9	
SR.PUMP FITTER G6	G- 6	3	
SR.PUM PUMP STN.ATTD.G6	G- 6	3	
SR.ROCK BREAKER GB CAR & 824 LOADER MAINT. G6	G- 6	5	
LOCO DRIVER G6	G- 6		
SR.JCB /TRANSPORT DRIVER G6	G- 6	21	5
SR.TURNER/SR.MECHANIST G6	G- 6	11	
SR.WELDER CUM FITTER G6	G- 6	6	
TINSMITH G6	G- 6	1	
HAVILDAR G6	G- 6	19	11
OTHER WORKERS -- SKILLED			
BANKSMAN GRI G7	G- 7	2	
BELLMAN GRI G7	G- 7	17	
BLASTER GRII G7	G- 7	50	
LDBH DRILLER GRI G7	G- 7		
LDBH OPERATOR GRII G7	G- 7	23	
LHD OPERATOR GRI G7	G- 7	2	
LOADER OPERATOR GRI G7	G- 7	24	
LOCO OPERATOR GRI G7	G- 7	13	
MAISTRY GRI G7	G- 7	141	10
PUMP DRIVER 100 HP G7	G- 7	17	1
RDMF / S GRI G7	G- 7	3	
ROCK BREAKER OPERATOR GRI G7	G- 7	4	1
SMALL HOIST DRIVER GRI G7	G- 7	7	
MAINT. OPERATOR GRI G7	G- 7	81	2
LAB ASST G7	G- 7		
AIR HOIST MAINT.GRI G7	G- 7	3	
BLACKSMITH GRI G7	G- 7	3	
CARPENTER/MACHINEMAN/PAINTER GRI G7	G- 7	3	1
CH/PH MECH/ATTD.GRI G7	G- 7	11	
CRUSHER MAINT.GRI G7	G- 7	6	
ELECTRICIAN GII/TELE OPERATOR GRII G7	G- 7	7	5
FABRICATOR / FITTER GRI G7	G- 7	10	1
FITTER GRI G7	G- 7	1	
HOIST DRIVER / HOIST BREAKSMAN GRII G7	G- 7	10	1
LAMP MECHANIC G7	G- 7	12	

13670-25600

12880 - 25600

23

GROUP "C"

LDBH MAINT. GRI G7	G-7	5	
LOADER MAINT. GRI G7	G-7	6	
LOCOMOTIVE MAINT. GRI G7	G-7	10	
MASON GRI G7	G-7	7	
MOULDER GRI G7	G-7		1
MV MECH / CUM / FITTER GRI G7	G-7	2	
PIPE FITTER GRI G7	G-7	7	
PME FITTER / RIGGER GRI G7	G-7	18	1
PUMP FITTER GRI G7	G-7	4	2
RIGGER GRI G7	G-7	4	
ROCK BREAKER GB CAR & 824 LOADER GR G7	G-7	10	
SR. TRANSPORT CLEANER G7	G-7	2	
STRIKER G7	G-7	1	
JCB/TRANSPORT DRIVER GRI G7	G-7	27	2
TURNER / MECHANIST GRI G7	G-7		
LANDER GRI G7	G-7	9	
PUMP STATION ATTD. GRI G7	G-7		
WELDER CUM FITTER GRI G7	G-7	6	
SECURITY GUARD G7	G-7	33	50
CLERK GRIII G7	G-7	22	3
SR. STORE BOY	G-7	1	
DRAUGHTSMAN GRIII G7	G-7		2
RECORD KEEPER G7	G-7	9	2
COOK GRI G7	G-7	18	
DRESSER GRI G7	G-7	1	
NURSING AID GRI G7	G-7	5	
LAB TECHNICIAN GRIII G7	G-7	1	1
X-RAY TECHNICIAN GRIII G7	G-7	4	
WARD BOY GRI G7	G-7	4	
OTHER WORKERS-- SEMI SKILLED			
BELLMAN GRII G8	G-8	33	2
LDBH DRILLER GRII G8	G-8	62	1
LDBH OPERATOR GRIII G8	G-8	42	2
LHD OPERATOR GRII G8	G-8	26	2
LOADER OPERATOR GRII G8	G-8	48	3
LOCO OPERATOR GRII G8	G-8	35	
MAISTRY GRII G8	G-8	224	5
PUMP DRIVER G8	G-8	7	
RDMF/S GRII G8	G-8	8	
ROCK BREAKER OPERATOR GRII G8	G-8	2	
SMALL HOIST DRIVER GRII G8	G-8	8	
MAINT. OP / FTR/ WELDER/TURNER GRII G8	G-8	41	14
LAB. ATTD. GRII G8	G-8		
AIR HOIST MAINT. GRII G8	G-8		

12880-25600

12130 - 24850

GROUP "C"

BLACKSMITH GRII G8	G- 8	2
CARPENTAR / MECH. MAINT. /PAINTER GRII G8	G- 8	4
CH / PH / MECH. / ATTD. GRII G8	G- 8	7
CRUSHER MAINT. GRII G8	G- 8	12
ELECTRICIAN GIII / TELE OPERATOR GRIII G8	G- 8	31
HOIST BREAKSMAN GRIII G8	G- 8	3
LAMP ROOM ATTD. G8	G- 8	2
LDBH MAINT. GRII G8	G- 8	4
LOADER MAINT. GRII G8	G- 8	7
LOCOMOTIVE MAINT. GRII G8	G- 8	8
MASON GRII / GENERAL LABOUR G8	G- 8	4
PIPE FITTER GRII G8	G- 8	6
PUMP FITTER GRII G8	G- 8	3
MV MECH CUM FITTER GRII G8	G- 8	1
PUMP STATION ATTD. GRII G8	G- 8	8
RIGGER GRII G8	G- 8	5
TINDALMAN G8	G- 8	16
ROCK BREAKER G8 CAR 824 & LOADER MAINT. GRII G8	G- 8	1
JCB /TRANSPORT DRIVER GRIII G8	G- 8	9
TRANSPORT CLEANER G8	G- 8	27
TURNER / MECHANIST GRII G8	G- 8	14
WELDER CUM FITTER GRII G8	G- 8	6
SECURITY GUARD G8	G- 8	19
OFFICE PEON G8	G- 8	8
RECORD KEEPER G8	G- 8	17
STORE BOY GRI G8	G- 8	15
COOK GRII G8	G- 8	1
FABRICATOR / FITTER GRII G8	G- 8	1
AYA GRI G8	G- 8	1
NURSING AID G8	G- 8	1
OPERATION THEATRE ATTENDER G8	G- 8	1
DRESSER GRII G8	G- 8	1
WARD BOY GRII G8	G- 8	1
Group "C" TOTAL		2436
Group "D" General Workman/ Labour G- 9 to G-12		265
"A+B+ C + D " GROUP TOTAL		9250-21400
		1416
		40
		3969
		388

12130 - 24850

* Persons from other District (Out side the Hyderabad Karnataka Region) of Karnataka and other States

Date : 07/01/2013
Moin/*

[Signature]
Dy. General Manager (HR)
Hutti Gold Mines Co. Ltd.
HUTTI - 511115

This Document referred to
Annexure.....in this
Affidavt of Sri

[Signature]
T/c

✓
NOTARY PUBLIC

ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು,
ಹಬ್ಬ ಚಿನ್ನದ ಗಣಿ ಕಂಪನಿ ನಿಯಮಿತ
ಹಬ್ಬ.

ಸಮುಚಿತ ಮಾರ್ಗದಲ್ಲಿ

ವಿಷಯ:- ಸ್ಥಳೀಯ ವೃಂದದವರಲ್ಲದ ಅಧಿಕಾರಿ ವರ್ಗದ ಮುಂಬಡ್ತಿ ವಿಳಂಬದ ಬಗ್ಗೆ.

ಮಾನ್ಯರೇ,

ಈ ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸ್ಥಳೀಯ ವೃಂದದವರಲ್ಲದ ಹಬ್ಬ ಚಿನ್ನದ ಗಣಿ ಅಧಿಕಾರಿ ವರ್ಗದವರಾದ ನಾವುಗಳು, ತಮ್ಮ ಗಮನಕ್ಕೆ ತರಬಯಸುವುದೇನೆಂದರೆ ಈ ಕೆಳಗೆ ಸಹಿ ಮಾಡಿದ ನಾವುಗಳು ಸುಮಾರು ಆರಂಭದ ಎಂಟು (6 ರಿಂದ 8) ವರ್ಷಗಳು ಒಂದೇ ದರ್ಜೆಯಲ್ಲಿ (ಉಪ ವ್ಯವಸ್ಥಾಪಕರು) ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿದ್ದು, ಕಂಪನಿಯ ಉತ್ಪಾದಕತೆ ಮತ್ತು ಅಭಿವೃದ್ಧಿಗೋಸ್ಕರ ಸತತ ಪರಿಶ್ರಮ ಹಾಗೂ ನಿಷ್ಠೆಯಿಂದ ಪ್ರಾಮಾಣಿಕವಾಗಿ ಸೇವೆಯನ್ನು ಸಲ್ಲಿಸುತ್ತಿದ್ದೇವೆ ಹಾಗೂ ಮುಂಬಡ್ತಿಯಿಲ್ಲದ ಕಾರಣ ಮಾನಸಿಕವಾಗಿ ನೊಂದಿದ್ದು ಮುಂಬಡ್ತಿಯ ನಿರೀಕ್ಷೆಯಲ್ಲಿದ್ದೇವೆ.

ಆದರೆ, 371 ಜೆ ಸ್ಥಳೀಯ ವೃಂದದ ಅಡಿಯಲ್ಲಿ ಈಗಾಗಲೇ ಕಾರ್ಯಗಳು ವ್ಯವಸ್ಥಾಪಕರು ಹಾಗೂ ಹಿರಿಯ ವ್ಯವಸ್ಥಾಪಕರ ಹುದ್ದೆಗೆ ದಿನಾಂಕ 22/03/2022 ರಂದು ಸಂದರ್ಶನಕ್ಕೆ ಆಹ್ವಾನಿಸಲಾಗಿದೆ.

ಹೀಗಾಗಿ ಸೇವಾ ಜೀವಿತಿಯಲ್ಲಿ ಹಿರಿಯರಾದ ನಾವುಗಳು ಉಪ ವ್ಯವಸ್ಥಾಪಕರ ಹುದ್ದೆಯಲ್ಲಿ ಉಳಿದು, ನಮಗಿಂತ ಕಿರಿಯ ಅಧಿಕಾರಿಗಳು ವ್ಯವಸ್ಥಾಪಕರ ಹುದ್ದೆಯಲ್ಲಿ ಮುಂದುವರಿಯುತ್ತಾರೆ. ಇಲ್ಲಿ ಸೇವಾಜೀವಿತ, ಘನತೆ, ಹಣಕಾಸು ಹಾಗೂ ಮತ್ತಿತರ ಕಂಪನಿಯ ಸೌಲಭ್ಯಗಳಿಂದ ನಾವು ವಂಚಿತರಾಗುವುದಲ್ಲದೆ, ಜೀವನ ಪರ್ಯಂತ ನಾವುಗಳು ಮುಂಬಡ್ತಿಯಿಲ್ಲದ ನಿವೃತ್ತಿಪೂಂಡವ ಸಾಧ್ಯತೆ ಇರುತ್ತದೆ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸರ್ಕಾರಿ ಸ್ವಾಮ್ಯದ ಉದ್ಯಮಗಳಲ್ಲಿ, ನಿರ್ದಿಷ್ಟ ವೇತನ ಶ್ರೇಣಿಯ ಮೇಲ್ಪಟ್ಟ ಮುಂಬಡ್ತಿಗಾಗಿ 371 ಜೆ ಮೀಸಲಾತಿಯನ್ನು ಪರಿಗಣಿಸುತ್ತಿಲ್ಲ. ಆದೇ ರೀತಿ ಹಬ್ಬ ಚಿನ್ನದ ಗಣಿ ಕಂಪನಿ ನಿಯಮಿತದಲ್ಲಿ ಅನ್ವಯವಾಗುವಂತೆ ಉಪ ವ್ಯವಸ್ಥಾಪಕರ ವೇತನ ಶ್ರೇಣಿಯ ಮೇಲ್ಪಟ್ಟ 371 ಜೆ ಮುಂಬಡ್ತಿ ಮೀಸಲಾತಿಯನ್ನು ಪರಿಗಣಿಸಬಾರದೆಂಬ ಪ್ರಸ್ತಾವನೆಯು ಹಬ್ಬ ಚಿನ್ನದ ಗಣಿ ನಿರ್ದೇಶಕರ ಮಂಡಳಿಯ ಸಭೆಯಲ್ಲಿ ಅನುಮೋದನೆ ಆಗಿದ್ದು, ಮುಂದುವರಿದಂತೆ ಸದರಿ ಪ್ರಸ್ತಾವನೆಯ ಕಡತವು ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿಗಳ ಅನುಮೋದನೆಯ ಹಂತದಲ್ಲಿರುವ ಎಂಬ ತೀರ್ಮಾನ ಬಂದಿರುತ್ತದೆ.

ಈ ಪ್ರಸ್ತಾವನೆ ಅನುಮೋದನೆಯ ಪೂರ್ವದಲ್ಲಿಯೇ ತಾವುಗಳು ಮುಂಬಡ್ತಿಯ ಪ್ರಕ್ರಿಯೆಯನ್ನು ಪ್ರಾರಂಭಿಸಿದ್ದರಿಂದ ಸ್ಥಳೀಯರಲ್ಲದ ನಮಗೆ ತೀವ್ರ ಅನ್ಯಾಯವಾಗಿರುತ್ತಿದ್ದು ಇದನ್ನು ಸರಿಪಡಿಸಬೇಕಾಗಿ ದಯಾಪರರಾದ ತಮ್ಮಲ್ಲಿ ನ್ಯಾಯವನ್ನು ಒದಗಿಸಬೇಕೆಂದು ವಿನಂತಿಸುತ್ತೇವೆ.

ದಂತಿ ತಪ್ಪು ವಿಶ್ವಾಸಿಗಳು

ಲಗತ್ತ:
1. ಸ್ಥಳೀಯವೃಂದದವರಲ್ಲದ ಅಧಿಕಾರಿಗಳ ವಿವರಗಳು

RECEIVED ON 22/03/22
[Signatures]

26

Sl.No	B.R. No.	Name	Date of Appointment	Date of Last Promotion	Age	Signature
1	7005	Sri V.M.Santosh Kumar	02-03-2007	01-10-2011	51	<i>[Signature]</i> 22/03/22
2	6952	Sri Jagadeesha T	07-01-2006	01-07-2014	42	<i>[Signature]</i>
3	6951	Sri K.Manjunatha	07-01-2006	01-07-2014	44	<i>[Signature]</i> 22/03/22
4	6954	Sri K.V.Somesh	17-01-2006	01-07-2014	44	<i>[Signature]</i> 22/03/22
5	6969	Dr.Sanjeev Kumar Solankar	12-07-2006	01-01-2015	42	- sd -
6	6970	Sri N.Venkateshamurthy	14-07-2006	01-01-2015	44	<i>[Signature]</i>
7	7011	Sri A.Kumeresh	16-03-2007	01-07-2015	40	- sd -
8	6974	Sri T.S.Manjunatha	05-10-2006	01-01-2016	40	<i>[Signature]</i>
9	6975	Sri Sachin Kathare	09-10-2006	01-01-2016	38	<i>[Signature]</i>
10	6996	Sri Elango Ramachandran C.	19-01-2007	01-07-2016	38	<i>[Signature]</i>
11	7003	Sri Dyamappa H. Adnur	26-02-2007	01-07-2016	45	- sd -
12	7010	Sri Mohd Irfan A.Hulageri	13-03-2007	02-08-2016	44	<i>[Signature]</i>
13	7315	Sri Aravinda J.	13-06-2009	01-07-2017	37	<i>[Signature]</i>
14	7321	Sri Shastri M.G.M.	19-06-2009	01-07-2017	37	<i>[Signature]</i>

This Document referred to
Annexure.....in this
Affidavit of Sri

NOTARY PUBLIC

27

4

ದಿನಾಂಕ:- 25ನೇ ಮಾರ್ಚ್ 2022

ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು,
ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿ ಕಂಪನಿ ನಿಯಮಿತ
ಹಟ್ಟಿ.

ಮಾನ್ಯರೇ,

ವಿಷಯ:-371 ಜಿ ಮೀಸಲಾತಿಯ ಪ್ರಕಾರ ಸ್ಥಳೀಯ ವೃಂದದವರಲ್ಲದ(Non Local) ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿಯ ಅಧಿಕಾರಿ
ವರ್ಗದ ಮುಂಬಡ್ತಿಯ ದೋಷವನ್ನು ಸಾಂವಿಧಾನಿಕವಾಗಿ ಸರಿಪಡಿಸುವ ಬಗ್ಗೆ ಪ್ರಸ್ತಾವನೆ.

ಈ ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸ್ಥಳೀಯ ವೃಂದದವರಲ್ಲದ ಹಟ್ಟಿ ಚಿನ್ನದ ಗಣಿ ಅಧಿಕಾರಿ ವರ್ಗದವರಾದ
ನಾವುಗಳು, ತಮ್ಮ ಗಮನಕ್ಕೆ ತರಬಯಸುವುದೇನೆಂದರೆ ಈ ಕೆಳಗೆ ಸಹಿ ಮಾಡಿದ ನಾವುಗಳು ಸುಮಾರು ಮೂರರಿಂದ
ಹನ್ನೊಂದು (3 ನಿಂದ 11) ವರ್ಷಗಳಿಂದ ಒಂದೇ ಶ್ರೇಣಿಯಲ್ಲಿ ಕಾರ್ಯ ನಿರ್ವಹಿಸುತ್ತಿದ್ದು, ಕಂಪನಿಯ ಉತ್ಪಾದಕತೆ ಮತ್ತು
ಅಭಿವೃದ್ಧಿಗೋಸ್ಕರ ಸತತ ಪರಿಶ್ರಮ ಹಾಗೂ ನಿಷ್ಠೆಯಿಂದ ಪ್ರಾಮಾಣಿಕವಾಗಿ ಸೇವೆಯನ್ನು ಸಲ್ಲಿಸುತ್ತಿದ್ದೇವೆ ಹಾಗೂ
ಮುಂಬಡ್ತಿಯಿಲ್ಲದ ಕಾರಣ ಮಾನಸಿಕವಾಗಿ ನೊಂದಿದ್ದು, ಮುಂಬಡ್ತಿಯ ನಿರೀಕ್ಷೆಯಲ್ಲಿದ್ದೇವೆ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ರಾಜ್ಯಪತ್ರ ಸಂಖ್ಯೆ:DPAR 06 PLX 2012, Bangalore Dt: 06/11/2013(ಅನುಬಂಧ-1) ಯ
ಪ್ರಕಾರ 8 ಮತ್ತು 3 ರಲ್ಲಿ ಉಲ್ಲೇಖಿಸಿದಂತೆ, 371 ಜಿ ಮೀಸಲಾತಿಯನ್ನು ಗ್ರೂಪ್ ಎ(ಜ್ಯೂನಿಯರ್ ಶ್ರೇಣಿ), ಗ್ರೂಪ್ ಬಿ, ಗ್ರೂಪ್
ಸಿ, ಮತ್ತು ಗ್ರೂಪ್ ಡಿ ಯ ವರೆಗೆ ಮಾತ್ರ ಪರಿಗಣಿಸಬೇಕೆಂದು ಸ್ಪಷ್ಟವಾಗಿ ತಿಳಿಸುತ್ತದೆ.

ಸದರಿ ಮೀಸಲಾತಿಗೆ ಸ್ಥಳೀಯ ವೃಂದವನ್ನು ಸೃಜಿಸುವ ಕುರಿತು ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿಗಳ ಪತ್ರ (ಸಂಖ್ಯೆ: ಸಿಎ 96
ಸಿಎಮ್‌ಸಿ 2013, ದಿನಾಂಕ 20-12-2013) ಕ್ಕೆ ಕಂಪನಿಯು ಪತ್ರ ಸಂಖ್ಯೆ: ವ್ಯನಿ/ಹಜಿಗ/ಹೈ.ಕ.ಪ್ರ.ಆ/2014 ದಿನಾಂಕ
18/01/2014(ಅನುಬಂಧ-2) ಯ ಮುಖಾಂತರ ಉತ್ತರಿಸಿದ್ದು, ಉಪ ವ್ಯವಸ್ಥಾಪಕರ ಹುದ್ದೆಯ ವರೆಗೂ ಗ್ರೂಪ್
ಎ(ಜ್ಯೂನಿಯರ್ ಶ್ರೇಣಿ)ಯ ಅನ್ವಯವಾಗಿದ್ದು, ತದನಂತರದ ಹುದ್ದೆಗಳು ಗ್ರೂಪ್ ಎ(ಸೀನಿಯರ್ ಶ್ರೇಣಿ) ಯಲ್ಲಿ ಬರುತ್ತಿದ್ದು
ಸದರಿ ಹುದ್ದೆಗಳಿಗೆ 371 ಜಿ ಮೀಸಲಾತಿಯ ಅನ್ವಯವಾಗುವುದಿಲ್ಲವೆಂದು ಸ್ಪಷ್ಟವಾಗಿ ಸರ್ಕಾರಕ್ಕೆ ತಿಳಿಸಿರುತ್ತದೆ.

ಸದರಿ ಪತ್ರಕ್ಕೆ ಮುಂದುವರಿದಂತೆ ಕಂಪನಿಯು 2ನೇ ಜೂನ್ 2014 ರಲ್ಲಿ ಅಧಿಸೂಚನೆಯ(ಸಂಖ್ಯೆ:
ವ್ಯನಿ/ಹಜಿಗ/ಹೈ.ಕ.ಪ್ರ.ಆ/2014) (ಅನುಬಂಧ-3) ನ್ನು ಹೊರಡಿಸಿದ್ದು ಸದರಿ ಅಧಿಸೂಚನೆಯ ಪ್ರಕಾರ ಗ್ರೂಪ್
ಎ(ಸೀನಿಯರ್ ಶ್ರೇಣಿ) (30450-42500) ಯ ಉಪ ಪ್ರಧಾನ ವ್ಯವಸ್ಥಾಪಕರ ಮೇಲಿನ ಹುದ್ದೆಗಳಿಗೆ ಅನ್ವಯಿಸುತ್ತಿರುವುದು
ಹಾಗೂ ಸದರಿ ಹುದ್ದೆಯ ತನಕ ಮೀಸಲಾತಿಯನ್ನು ಪರಿಗಣಿಸುತ್ತಿರುವುದು ಸ್ಪಷ್ಟವಾಗಿದ್ದು, ಈ ಅಧಿಸೂಚನೆಯು ಸರ್ಕಾರಕ್ಕೆ
ಸಲ್ಲಿಸಿದ ಪತ್ರಕ್ಕೆ(ಅನುಬಂಧ-2) ಬಿರುದಾಗಿರುವುದು ಕಂಡುಬರುತ್ತದೆ. ಹಾಗೂ ಮೇಲೆ ಉಲ್ಲೇಖಿಸಿದ ಮೇತನ ಶ್ರೇಣಿಯು
01/04/2013 ರಂದು ಪರಿಷ್ಕೃತವಾಗಿದ್ದು(ಅನುಬಂಧ-4), ಇದರ ಪ್ರಕಾರ ಹಿರಿಯ ಅಭಿಯಂತರರ ಹುದ್ದೆಗಳ ನಂತರದ
ಹುದ್ದೆಗಳಿಗೆ 371 ಜಿ ಮೀಸಲಾತಿಯ ಅನ್ವಯವಾಗುವುದಿಲ್ಲ. ಸದರಿ ಅಧಿಸೂಚನೆಯಲ್ಲಿ ಸೂಚಿಸಿದ ಮಾಲಿ ಹುದ್ದೆಗಳು ಹಾಗೂ
ಪ್ರಸ್ತುತ ಛರ್ಚಿ ಮಾಡುತ್ತಿರುವ ಹುದ್ದೆಗಳಿಗೆ ಮೇಲಿನಂತೆಯೇ ಸಹ ಕಂಡುಬರುತ್ತಿಲ್ಲ.

ಆದಾಗ್ಯೂ ಸದರಿ ಅಧಿಸೂಚನೆಯ ಪ್ರಕಾರವೇ ದಿನಾಂಕ 22/03/2022 ರಂದು ನಡೆದ ಬಡ್ತಿಗಾಗಿ ಸಂದರ್ಶನಕ್ಕೆ ವ್ಯವಸ್ಥಾಪಕರು
ಹಾಗೂ ಹಿರಿಯ ವ್ಯವಸ್ಥಾಪಕರ ಹುದ್ದೆಗಳಿಗೆ 371 ಜಿ ಮೀಸಲಾತಿಯನ್ನು ಪರಿಗಣಿಸಿದ್ದು ಸರ್ಕಾರಕ್ಕೆ ಸಲ್ಲಿಸಿದ ಪತ್ರಕ್ಕೆ

28

(ಅನುಬಂಧ-2) ವಿರುದ್ಧವಾಗಿದ್ದು ಸದರಿ ವಿಷಯವನ್ನು ಅದೇ ದಿನ ಸಂದರ್ಶನಕ್ಕೆ ಮುಂಚಿತವಾಗಿ ಮೌಖಿಕವಾಗಿ ಮಾನ್ಯ ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರ ಗಮನಕ್ಕೆ ತಂದಿದ್ದು ಸದರಿಯವರ ನಿರ್ದೇಶನದಂತೆ ಲಿಖಿತ ರೂಪದಲ್ಲಿ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತೇವೆ(ಅನುಬಂಧ-5). ಮುಂದುವರಿದಂತೆ, ಜನವರಿ-2022 ಕ್ಕೆ ಪ್ರಕಟಿಸಬೇಕಾಗಿದ್ದ ಈ ವರ್ಷದ ಜ್ಯೇಷ್ಠತಾ ಪಟ್ಟಿಯನ್ನು ಪ್ರಕಟಿಸದೆ ಸದರಿ ಸಂದರ್ಶನವನ್ನು ನಡೆಸಿರುವುದು ವಿಷಾದನೀಯ ಸಂಗತಿಯಾಗಿದ್ದು, ಸಂದರ್ಶನ ನಡೆಸುವ ಮುನ್ನ ಯಾವುದೇ ಹುದ್ದೆಗಳ ವಿವರ, ಬಾಲಿ ಹುದ್ದೆಗಳ ವಿವರ, ಸಂದರ್ಶನಕ್ಕೆ ಕರೆಯುವ ಅಧಿಕಾರಿಗಳ ವಿವರವನ್ನು ಪ್ರಕಟಿಸದೇ ಇರುವುದು ಸಂದರ್ಶನ ಪ್ರಕ್ರಿಯೆಯು ಪಾರದರ್ಶಕವಾಗಿರುವುದಿಲ್ಲವೆಂದು ತಿಳಿಸಲು ವಿಷಾದವಾಗುತ್ತದೆ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸರ್ಕಾರಿ ಸ್ವಾಮ್ಯದ ಉದ್ಯಮಗಳಾದ ಕೆಪಿಟಿಸಿಎಲ್, ಜೆಸ್ಕಾಂ ಗಳಲ್ಲಿ ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಇಂಜಿನಿಯರ್(20500-43850)ವರೆಗೆ ಮಾತ್ರ 371 ಜೆ ಮೀಸಲಾತಿಯನ್ನು ಪರಿಗಣಿಸಲಾಗುತ್ತಿದೆ(ಅನುಬಂಧ-6).

ಅದೇ ರೀತಿ ಕಂಪನಿಯು 16ನೇ ಜೂನ್ 2020 ರಂದು ನಡೆದ 416ನೇ ನಿರ್ದೇಶಕರ ಮಂಡಳಿ ಸಭೆಯಲ್ಲಿ(ಪಟಂ ನಂ:06) ನಿರ್ಧರಿಸಿರುವಂತೆ, 371 ಜೆ ಮೀಸಲಾತಿಯನ್ನು ಉಪ ವ್ಯವಸ್ಥಾಪಕರ ಹುದ್ದೆ ಮತ್ತು ಅದರ ಕೆಳಗಿನ ಹುದ್ದೆಗಳಿಗೆ ಮಾತ್ರ ಅನ್ವಯಿಸುವಂತೆ ಆದೇಶಿಸಿರುತ್ತಾರೆ ಹಾಗೂ ಸದರಿ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಮರುಪರಿಶೀಲಿಸಿ ಸರ್ಕಾರದ ಅನುಮೋದನೆಗೆ ಸಲ್ಲಿಸಲು ಮಾನ್ಯ ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರಿಗೆ ಸೂಚಿಸಲಾಗಿದೆ(ಅನುಬಂಧ-7). ಮುಂದುವರಿದಂತೆ ಸದರಿ ಪ್ರಸ್ತಾವನೆಯ ಕಡತವು ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿಗಳ ಅನುಮೋದನೆಯ ಹಂತದಲ್ಲಿದೆ ಎಂದು ತಿಳಿದು ಬಂದಿರುತ್ತದೆ.

ಈ ಪ್ರಸ್ತಾವನೆ ಅನುಮೋದನೆಯ ಪೂರ್ವದಲ್ಲಿಯೇ ತಾವುಗಳು ಮುಂಬಡ್ತಿಯ ಪ್ರಕ್ರಿಯೆಯನ್ನು ಪ್ರಾರಂಭಿಸಿರುವುದು ಹಾಗೂ ನೇರ ನೇಮಕಾತಿಗೆ ಸಹ ಅಧಿಸೂಚನೆ ಹೊರಡಿಸಿದ್ದು, ಸ್ಥಳೀಯರಲ್ಲದ ನಮಗೆ ತೀವ್ರ ಅನ್ಯಾಯವಾಗುತ್ತಿದೆ.

ಈ ಮೇಲೆ ತಿಳಿಸಿದ ಎಲ್ಲಾ ಅಂಶಗಳಿಂದ ತಮ್ಮ ಗಮನಕ್ಕೆ ತರಬಯಸುವುದೇನೆಂದರೆ, ಸೇವಾ ಜೀಷ್ಠತೆಯಲ್ಲಿ ಹಿರಿಯರಾದ ನಾವುಗಳು ಸದರಿ ಹುದ್ದೆಯಲ್ಲಿ ಉಳಿದು, ನಮಗಿಂತ ಕಿರಿಯ ಅಧಿಕಾರಿಗಳು ನಮಗಿಂತ ಮೇಲಿನ ಹುದ್ದೆಯಲ್ಲಿ ಮುಂದುವರೆಯುತ್ತಾರೆ. ಇಲ್ಲಿ ಸೇವಾಜೀಷ್ಠತೆ, ಘನತೆ, ಹಣಕಾಸು ಹಾಗೂ ಮತ್ತಿತರ ಕಂಪನಿಯ ಸೌಲಭ್ಯಗಳಿಂದ ನಾವು ವಂಚಿತರಾಗುವುದಲ್ಲದೇ, ಜೀವನ ಪರ್ಯಂತ ನಾವುಗಳು ಮುಂಬಡ್ತಿಯಲ್ಲಿದ ನಿವೃತ್ತಿಹೊಂದುವ ಸಾಧ್ಯತೆ ಇರುತ್ತದೆ ಹಾಗೂ ನಮಗಿಂತ ಕಿರಿಯ ಅಧಿಕಾರಿಗಳಿಗೆ ಅನುಭವ ಮತ್ತು ಕುರಲತೆಯ ಕೊರತೆಯಿಂದಾಗಿ ಸೂಕ್ತವಾದ ನಿರ್ಧಾರಗಳನ್ನು ತೆಗೆದುಕೊಳ್ಳದೇ ಕಂಪನಿಯ ಉತ್ತಾದನೆ ಹಾಗೂ ಸುರಕ್ಷತೆಗೆ ಧಕ್ಕೆಯಾಗಬಹುದು.

ಈ ಮೇಲೆ ತಿಳಿಸಿದ ಎಲ್ಲಾ ಅಂಶಗಳಿಂದ ಸ್ಥಳೀಯರಲ್ಲದ ನಮಗೆ ತೀವ್ರ ಅನ್ಯಾಯವಾಗುತ್ತಿರುವುದು ಸ್ಪಷ್ಟವಾಗಿ ಕಂಡುಬರುತ್ತಿದ್ದು ಇದನ್ನು ಸರಿಪಡಿಸಿ ನ್ಯಾಯವನ್ನು ಒದಗಿಸಬೇಕೆಂದು ದಯಾಪರರಾದ ತಮ್ಮಲ್ಲಿ ವಿನಂತಿಸುತ್ತೇವೆ ಹಾಗೂ 371 ಜೆ ಮೀಸಲಾತಿಯ ಸಮಸ್ಯೆಗೆ ಪರಿಹಾರ ಒಗ್ಗುವವರೆಗೂ ನೇರ ನೇಮಕಾತಿ ಮತ್ತು ಮುಂಬಡ್ತಿ ಪ್ರಕ್ರಿಯೆಯನ್ನು ತಾತ್ಕಾಲಿಕವಾಗಿ ಮುಂದೂಡಬೇಕೆಂದು ತಮ್ಮಲ್ಲಿ ವಿನಂತಿಸಿಕೊಳ್ಳುತ್ತೇವೆ.

ಇಂತಿ ತಮ್ಮ ವಿಶ್ವಾಸಿಗಳು

(ಸಹಿಗಳನ್ನು ಲಗತ್ತಿಸಿದೆ)

ಲಗತ್ತು:

1. ಸ್ಥಳೀಯ ವೃಂದದವರಲ್ಲದ ಅಧಿಕಾರಿಗಳ ವಿವರ ಮತ್ತು ಸಹಿ
2. ಅನುಬಂಧ-1 ರಿಂದ 7

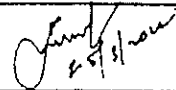
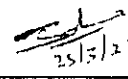
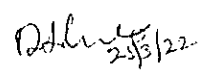
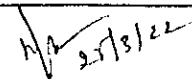
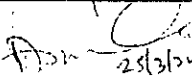
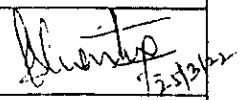
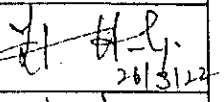
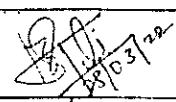
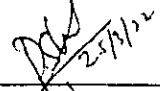
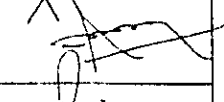
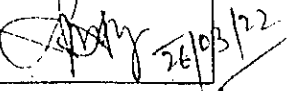
29

ದಿ. 371 ಸ್ಥಳೀಯ ಮೊದಲನೆಯ ಪ್ರಕಾರ ಸ್ಥಳೀಯ ಮೊದಲನೆಯ (Non-Local) ದಲ್ಲಿ ಬಿಡುಗಡೆ ಮಾಡಿ ಅಧಿಕಾರ ವಹಿಸಿದ ಮುಂಬಡ್ತಿ ಮೊದಲನೆಯ ಸಾಂವಿಧಾನಿಕವಾಗಿ ನೋಡಿದಾಗ ಬಗ್ಗೆ ಅನುಮತಿಸಿ ದಿ: 25/03/2022

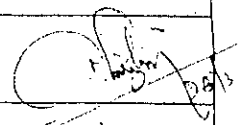
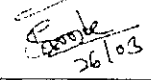
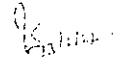
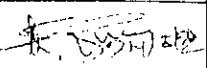
ಲಿ. 1: ಸ್ಥಳೀಯ ಮೊದಲನೆಯ ಅಧಿಕಾರ ವಹಿಸಿದ ಮುಂಬಡ್ತಿ ಮೊದಲನೆಯ

Sl. No.	DEPT	B.R. No.	Name of the Officer	Designation	Sign
1	ENGG	5233	Sri Manjunath K. Kadler	Sr. Manager(Auto)	
2	MET	5277	Mrs. Vidhathri U.	I/c DGM(Met)	26/3/22
3	UG	7006	Sri Arunava Ghosh	Sr. Manager(Mining)	
4	HOSP	5469	Dr. R.L.Mavinakatti	Medical Superintendent	
5	UG	7005	Sri V.M.Santosh Kumar	Manager(Mining)	
6	FINC	7233	Sri Prabhunath M.P.	Manager(F&A)	
7	HOSP	6323	Dr. V.Y. I ludedamani	Orthopaedic Surgeon	
8	HOSP	6695	Dr. M.K. Ananda	Dy. Manager(Medical)	
9	SURV	6609	Sri Udaya Kumar	Dy. Manager(Survey)	
10	UG	6952	Sri Jagadeesha T	Dy. Manager(Mining)	(On Leave)
11	UG	6951	Sri K. Manjunatha	Dy. Manager(Mining)	25/03/22
12	UG	6954	Sri K.V. Somesh	Dy. Manager(Mining)	28/03/22
13	EXPLC	6969	Dr. Sanjeev Kumar Solankar	Dy. Manager(Explo)	
14	EXPLC	6970	Sri N. Venkateshamurthy	Dy. Manager(Explo)	
15	UG	7011	Sri A. Kumeresh	Dy. Manager(Mining)	(On Leave)
16	HOSP	7162	Dr. Prashant Navadagi	Dy. Manager(Ayurvedic)	

30

Sl. No.	DEPT	B.R. No.	Name of the Officer	Designation	Sign
17	UG	6974	Sri T.S.Manjunatha	Dy.Manager(Mining)	
18	UG	6975	Sri Sachin Kathare	Dy.Manager(Mining)	
19	UG	6996	Sri Elango Ramachandran C.	Dy.Manager(Mining)	
20	ENGG	7003	Sri Dyamappa H. Adnur	Dy.Manager(Mech)	
21	ENGG	7010	Sri Mohd Irfan A.Hulageri	Dy.Manager(Mech)	
22	ENGG	7252	Sri T.J.Sriraghava.	Sr.Engineer(Env.)	
23	MET	7315	Sri Aravinda J.	Dy.Manager(Met)	
24	MET	7321	Sri Shastry M.G.M.	Dy.Manager(Met)	
25	UG	5318	Sri T.Kailasam	Dy.Manager(Mining)	
26	EXPLC	7348	Sri Ramesh G.	Dy.Manager(Explo)	
27	EXPLC	7350	Sri Anil Kumar B.V.	Dy.Manager(Explo)	
28	HOSP	7392	Dr.N.Santosh	Dy.Manager(Medical)	
29	ENGG	7356	Sri Basavaraj Teli	Dy.Manager(Inst.)	
30	SURV	7358	Sri Prashanth	Dy.Manager(Mining)	
31	UG	5306	Sri K.Amarnath Reddy	Dy.Manager(Mining)	
32	UG	7385	Sri Amal Roy	Dy.Manager(Mining)	

31

Sl. No.	DEPT	B.R. No.	Name of the Officer	Designation	Sign
33	ADMIN	6967	Smt B.N.Subbalakshmi	Dy.Manager	Out of Station
34	UG	7383	Sri G.Shiva Krishna	Dy.Manager(Mining)	
35	EXPLOR	7287	Sri Ganesha R.B.	Senior Geologist	
36	UG	5314	Sri C.Parashuram	Sr.Engineer(Mining)	
37	UG	8380	Sri Suresh Tambe	Sr.Engineer(Mining)	 26/03
38	MET	8396	Sri Mahibooob	Sr.Metallurgist	On leave
39	ENGG	8401	Sri Ravi G.	Sr.Engineer(Civil)	Out of Station
40	HOSP	8477	Dr.Meghana R.	Medical Officer	Out of Station
41	UG	5401	Sri Veerappa Savakar	Engineer(Mining)	
42	FINC	5125	Sri Vishwanath Naik	Officer(M-Audit)	
43	SECU	6944	Sri Balachandra Narasangi	Security Officer	

This Document referred to
Annexure.....in this
Affidavit of Sri

NOTARY PUBLIC

T/C 